

# HOUSE . . . . . No. 4122

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Lindsay N. Sabadosa***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to deceptive trade practices.

PETITION OF:

| NAME:                      | DISTRICT/ADDRESS:    | DATE ADDED:      |
|----------------------------|----------------------|------------------|
| <i>Lindsay N. Sabadosa</i> | <i>1st Hampshire</i> | <i>1/17/2025</i> |

# HOUSE . . . . . No. 4122

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By Representative Sabadosa of Northampton, a petition (accompanied by bill, House, No. 4122) of Lindsay N. Sabadosa relative to deceptive trade practices for emergency contraceptives and medical abortion. Public Health.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to deceptive trade practices.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 111 of the General Laws is hereby amended by adding the  
2 following section:-

3           Section 249. (a) As used in this section, the following term shall, unless the context  
4 clearly requires otherwise, have the following meaning:

5           “Emergency contraceptive”, any drug approved by the federal Food and Drug  
6 Administration as a contraceptive method for use after sexual intercourse, whether provided  
7 over-the-counter or by prescription.

8           (b) A person shall be deemed to have committed an unfair or deceptive act under chapter  
9 93A if the person makes or disseminates to the public or causes to be made or disseminated to  
10 the public any advertisement that indicates that the person provides abortions or emergency  
11 contraceptives, or referrals for abortions or emergency contraceptives, when the person knows or

reasonably should have known, at the time of publication or dissemination to the public of the advertisement, that the person does not provide abortions or emergency contraceptives.

SECTION 2. Chapter 112 of the General Laws is hereby amended by inserting after section 12L the following section:-

Section 12L½. (a) As used in this section, the following terms shall, unless the context clearly requires otherwise, have the following meanings:

"Medication abortion", abortion provided by medication techniques.

"Medication abortion reversal", administering, dispensing, distributing or delivering a drug with the intent to interfere with, reverse or halt a medication abortion.

(b) A person licensed pursuant to this chapter shall not provide, prescribe, administer or attempt medication abortion reversal.

(c) A person who violates this section shall be subject to disciplinary procedures by their licensing board.